Number 2 *of* 1995

ADOPTIVE LEAVE ACT 1995

REVISED

Updated to 1 April 2021

This Revised Act is an administrative consolidation of the *Adoptive Leave Act 1995*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Residential Tenancies Act 2021* (5/2021), enacted 30 March 2021, and all statutory instruments up to and including the *Family Leave and Miscellaneous Provisions Act 2021 (Commencement) Order 2021* (S.I. No. 148 of 2021), made 30 March 2021, were considered in the preparation of this Revised Act.

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ADOPTIVE LEAVE ACT 1995

REVISED

Updated to 1 April 2021

AN ACT TO ENTITLE FEMALE EMPLOYEES, AND IN CERTAIN CIRCUMSTANCES MALE EMPLOYEES, TO EMPLOYMENT LEAVE FOR THE PURPOSE OF CHILD ADOPTION, TO EXTEND TO THEM THE PROTECTION AGAINST UNFAIR DISMISSAL CONFERRED BY THE UNFAIR DISMISSALS ACT, 1977, AND TO PROVIDE FOR CONNECTED MATTERS. [15*th March*, 1995]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART I

Preliminary and General

Short title and commencement.

1.—(1) This Act may be cited as the Adoptive Leave Act, 1995.

(2) This Act shall come into operation on such day as the Minister shall by order appoint.

Interpretation.

2.—(1) In this Act, except where the context otherwise requires—

F1**[**"accredited body" means a body of persons whose name is entered in the register of accredited bodies maintained under Part 13 of the Adoption Act 2010;**]**

"the Act of 1967" means the Redundancy Payments Act, 1967;

"the Act of 1977" means the Unfair Dismissals Act, 1977;

F2**[**"Act of 2010" means the Civil Partnership and Certain Rights and Obligations of Cohabitants Act 2010;**]**

F1**[**"adoption order" means an adoption order within the meaning of section 3 (1) of the Adoption Act 2010;**]**

F3**[**"adoptive leave" has, subject to *subsection (2A)*, the meaning assigned to it by *section 6(1)* or, as the case may be, *section 9(1)*;**]**

F3**[**"additional adoptive leave" has, subject to *subsection (2A)*, the meaning assigned to it by *section 8(1)* or, as the case may be, *section 10(1)*;**]**

F4**[**...**]**

F4**[**...**]**

"adopting parent" means F5**[**qualifying adopter or surviving parent**]**;

"associated employer" shall be construed in accordance with *section 19 (3)*;

F1**[**"Authority" has the meaning assigned to it by section 3 (1) of the Adoption Act 2010;**]**

"certificate of placement" has the meaning assigned to it by *section 13*;

F2**[**"civil partner" shall be construed in accordance with section 3 of the Act of 2010;**]**

F2**[**"cohabitant" shall be construed in accordance with section 172(1) of the Act of 2010;

"cohabiting couple" has the same meaning as it has in the Adoption Act 2010;**]**

"contract of employment" means, subject to *subsection (2)*—

(*a*) a contract of service or apprenticeship, or

(*b*) any other contract whereby an individual agrees with a person, who is carrying on the business of an employment agency within the meaning of the Employment Agency Act, 1971, and is acting in the course of that business, to do or perform personally any work or service for another person (whether or not that other person is a party to the contract),

whether the contract is express or implied and if express, whether it is oral or in writing;

F2**[**"couple", in relation to the definition of "qualifying adopter", means a married couple, a couple who are civil partners of each other or a cohabiting couple;**]**

"day of placement" means—

(*a*) the day on which the child is placed physically in the care of the adopting parent with a view to the making of an adoption order, or

(*b*) the day on which the child is placed physically in the care of the adopting parent with a view to the effecting of a foreign adoption, or

(*c*) in the case of a foreign adoption, where the child has not previously been placed in the care of the adopting parent, the day on which the child has been so placed following the adoption;

F4**[**...**]**

"employee", subject to *subsection (2)*, means (except in *Part IV*) a person who has entered into or works under (or, where the employment has ceased, entered into or worked under) a contract of employment;

"employer", subject to *subsection (2)*, means, in relation to an employee, the person with whom the employee has entered into, or for whom the employee works under (or, where the employment has ceased, entered into or worked under) a contract of employment;

F6**[**"foreign adoption" means an intercountry adoption effected outside the State within the meaning of section 3(1) of the Adoption Act 2010;**]**

"health board" means a health board established pursuant to the Health Act, 1970;

"the Minister" means the F5**[**Minister for Children, Equality, Disability, Integration and Youth;**]**

F7**[**"parent's leave" has the same meaning as it has in the Parent's Leave and Benefit Act 2019;**]**

F8**[**"paternity leave" and "transferred paternity leave" have the same meanings as they have in the Paternity Leave and Benefit Act 2016;**]**

F9**[**"postponed leave" has the meaning assigned to it by *section 11C(2)(c)*;**]**

"prescribed" means prescribed by order or regulation under this Act;

F2**[**"qualifying adopter" means—

(*a*) where a child is placed, or is to be placed, in the care of a couple (of whom neither is the mother or father of the child), with a view to the making of an adoption order, or to the effecting of a foreign adoption or following any such adoption, the member of the couple who is—

(i) an employee, and

(ii) chosen by the couple to be the qualifying adopter for the purposes of this Act,

(*b*) in any other case, an employee, who is not a surviving parent in relation to the child, in whose care a child has been placed or is to be placed with a view to the making of an adoption order, or to the effecting of a foreign adoption or following any such adoption;**]**

F10**[**...**]**

F4**[**...**]**

"the successor" has the meaning assigned to it by *section 18*;

F2**[**"surviving parent" means an employee in whose care a child has been placed or is to be placed with a view to the making of an adoption order, or to the effecting of a foreign adoption or following any such adoption, where his or her spouse, civil partner or cohabitant, as the case may be, was the qualifying adopter in relation to the child and the qualifying adopter concerned has died;**]**

"the Tribunal" means the Employment Appeals Tribunal.

(2) For the purposes of this Act—

(*a*) a person holding office under, or in the service of, the State (including a member of the Garda Síochána or the Defence Forces) or otherwise as a civil servant, within the meaning of the Civil Service Regulation Act, 1956, shall be deemed to be an employee employed by the State or Government, as the case may be, under a contract of service;

(*b*) an officer or servant of a local authority, for the purposes of the Local Government Act, 1941, a harbour authority, a health board or F11**[**a member of staff of an education and training board**]** shall be deemed to be an employee employed by the authority F11**[**or board**]**, as the case may be, under a contract of service; and

(*c*) in relation to an employee whose contract of employment falls (or, where the employment has ceased, fell) within *paragraph (b)* of the definition of "contract of employment" in *subsection (1)*, the person who is liable to pay F12**[**his or her**]** wages shall be deemed to be F12**[**his or her**]** employer.

F13**[**(2A) In this Act, except where the context otherwise requires, references to a period of adoptive leave or additional adoptive leave are references to—

(*a*) in case part of such leave is postponed under section 11C, the part already taken or the part postponed, as appropriate, or

(*b*) in any other case, a continuous such period, whether or not so postponed.**]**

(3) In this Act, a reference to a Part or section is to a Part or section of this Act, unless it is indicated that reference to some other enactment is intended.

(4) In this Act, a reference to a subsection or paragraph is to the subsection or paragraph of the provision in which the reference occurs, unless it is indicated that reference to some other provision is intended.

(5) In this Act, a reference to any enactment includes a reference to that enactment as amended by any other enactment including this Act.

Orders and regulations.

3.—(1) An order or regulation under this Act may contain such consequential, supplementary and ancillary provisions as the Minister considers necessary or expedient.

(2) The Minister may by order amend or revoke an order under this Act, including an order under this subsection.

(3) Where an order is proposed to be made under this Act, a draft of the order shall be laid before both Houses of the Oireachtas and the order shall not be made until a resolution approving of the draft has been passed by each such House.

(4) Before making an order or regulation under this Act, the Minister shall consult such organisations or other bodies of persons representative of employers and such organisations or other bodies of persons representative of trades unions or bodies analogous to trades unions as the Minister considers appropriate.

(5) *Subsections (1)* to *(4)* do not apply to an order under *section 1 (2)*.

(6) Every regulation made under this Act shall be laid before each House of the Oireachtas as soon as practicable after it is made and, if a resolution annulling the regulation is passed by either such House within the next 21 days on which the House has sat after the regulation is laid before it, the regulation shall be annulled accordingly, but without prejudice to the validity of anything previously done under the regulation.

Voidance or modification of certain provisions in agreements.

4.—(1) In this section "agreement" means an agreement, whether a contract of employment or not, and whether made before or after the commencement of this Act.

(2) A provision in an agreement shall be void in so far as it purports to exclude or limit the application of any provision of this Act or is inconsistent with any provision of this Act.

(3) A provision in an agreement which is or becomes less favourable in relation to an adopting parent than a similar or corresponding entitlement conferred on F17**[**the adopting parent**]** by this Act shall be deemed to be so modified as to be not less favourable to F17**[**the adopting parent**]**.

(4) Nothing in this or any other enactment shall be construed as prohibiting the inclusion in an agreement of a provision (subsequently referred to in this section as "the additional provision") in relation to adoption, in addition to those required by this Act, the effect of which would be to render the agreement more favourable to an adopting parent than it would be if it did not include the additional provision.

(5) The inclusion of the additional provision in an agreement shall not, by reason of the fact that it applies to an adopting parent only, confer any right under this or any other enactment on an employee who is not an adopting parent.

Expenses.

5.—Any expenses incurred in the administration of this Act shall, to such extent as may be sanctioned by the Minister for Finance, be paid out of moneys provided by the Oireachtas.

PART II

Adoptive Leave

F18**[**Entitlement of employed adopting mother (or sole male adopter) to minimum period of adoptive leave.

6.—(1) Subject to this Part, F19**[**a qualifying adopter**]** shall be entitled to leave (to be known as "adoptive leave") from the employee's employment.

(2) Adoptive leave shall begin on the date of placement and be for a minimum period of 16 weeks.

(3) The minimum period may be extended by order made by the Minister with the consent of the Minister for Social and Family Affairs and the Minister for Finance.**]**

F20**[**(4) A person may not avail of adoptive leave (within the meaning of *subsection (1)*) under this Act where the person avails of paternity leave under the Paternity Leave and Benefit Act 2016.**]**

F21**[**Restrictions on entitlement to adoptive leave

6A. ...**]**

Notification of employer.

7.—(1) In the case of an adoption other than a foreign adoption, entitlement to the minimum period of adoptive leave shall be subject to F22**[**a qualifying adopter**]**—

(*a*) having, as soon as is reasonably practicable but not later than 4 weeks before the expected day of placement, caused F22**[**his or her**]** employer to be notified in writing of F22**[**his or her**]** intention to take adoptive leave, and

(*b*) having, as soon as is reasonably practicable, caused F22**[**his or her**]** employer to be notified in writing of the expected day of placement, and

(*c*) causing F22**[**his or her**]** employer to be supplied with the certificate of placement as soon as is reasonably practicable but not later than 4 weeks after the day of placement.

(2) In the case of a foreign adoption, entitlement to the minimum period of adoptive leave shall be subject to F22**[**a qualifying adopter**]**—

(*a*) having, as soon as is reasonably practicable but not later than 4 weeks before the expected day of placement, caused F22**[**his or her**]** employer to be notified in writing of F22**[**his or her**]** intention to take adoptive leave, and

(*b*) having, as soon as is reasonably practicable, caused F22**[**his or her**]** employer to be notified in writing of the expected day of placement, and

F23**[**(*c*) (i) having caused F22**[**his or her**]** employer to be supplied with a copy of an applicable "declaration of eligibility and suitability" (within the meaning of section 3 (1) of the Adoption Act 2010) before the expected day of placement, if not already supplied, and**]**

(ii) causing her employer to be supplied with particulars in writing of the placement as soon as is reasonably practicable after the day of placement.

(3) A notification under this section may be revoked by a further notification in writing by or on behalf of F22**[**the qualifying adopter**]** to her employer.

(4) Where the day of placement is postponed, commencement of the period of adoptive leave shall also be postponed subject to F22**[**the qualifying adopter**]** causing F22**[**his or her**]** employer to be notified of the expected new day of placement as soon as is reasonably practicable.

Entitlement of employed adopting mother (or sole male adopter) to additional adoptive leave.

8.—(1) F24**[**(*a*) Subject to this Part, F25**[**a qualifying adopter**]** who is entitled to, F26**[**or is on, adoptive leave or transferred paternity leave**]** shall, on request, be entitled to further leave (to be known as "additional adoptive leave") from the employee's employment.

(*b*) The additional adoptive leave F27**[**or, where applicable, any period of transferred paternity leave**]** shall commence immediately after the adoptive leave and be for a maximum period of 8 weeks.

(*c*) The maximum period may be extended by order made by the Minister.**]**

(2) Entitlement to additional adoptive leave, in a situation other than one to which *subsection (5)* applies, shall be subject to F25**[**a qualifying adopter**]** having caused F25**[**his or her**]** employer to be notified in writing of F25**[**his or her**]** intention to take such leave.

(3) Notification under *subsection (2)* shall be given either at the same time as the relevant notification under *section 7 (1) (a)* or *(2) (a)* or not later than 4 weeks before the date which would have been the expected date of F25**[**his or her**]** return to work if the F25**[**the qualifying adopter**]** had not taken the F28**[**additional adoptive leave or, where the F25**[**the qualifying adopter**]** takes transferred paternity leave, the date on which the additional adoptive leave is, under *subsection (1)(b)*, to commence.**]**

(4) A notification under *subsection (2)* may be revoked by a further notification in writing by or on behalf of F25**[**the qualifying adopter**]** to F25**[**his or her**]** employer not later than 4 weeks before the date which would have been the expected date of F25**[**his or her**]** return to work if F25**[**the qualifying adopter**]** had not taken the additional adoptive leave.

(5) In the case of a foreign adoption, where F25**[**the qualifying adopter**]** requires a period of additional adoptive leave before the day of placement, for the purposes of familiarisation with the child who is to be adopted, some or all of the additional adoptive leave may be taken before the day of placement.

(6) Entitlement to additional adoptive leave under *subsection (5)* shall be subject to F25**[**the qualifying adopter**]**—

(*a*) having caused F25**[**his or her**]** employer to be notified in writing not later than 4 weeks before the date on which F25**[**he or she**]** intends to take such leave, of the intended date of commencement of such additional adoptive leave, and

F29**[**(*b*) having caused F25**[**his or her**]** employer to be supplied with a copy of an applicable instrument, prepared by or on behalf of the Central Authority of the state of the adoption, that is equivalent to a "declaration of eligibility and suitability" (within the meaning of section 3 (1) of the Adoption Act 2010).**]**

(7) A notification under *subsection (6) (a)* may be revoked by a further notification in writing by or on behalf of F25**[**the qualifying adopter**]** to F25**[**his or her**]** employer.

(8) A period of additional adoptive leave under *subsection (5)* shall expire immediately before the day of placement.

Entitlement of adopting father to adoptive leave in certain circumstances.

9.—F30**[**(1) (*a*) Where F31**[**a qualifying adopter**]** dies, F31**[**the surviving parent**]** shall be entitled to leave (to be known as "adoptive leave") from F31**[**his or her**]** employment.

(*b*) The adoptive leave shall be for a period of—

(i) in case F31**[**the qualifying adopter**]** dies on or after the day of placement, 16 weeks less the period between the date of placement and the date of F31**[**his or her**]** death, or

(ii) in any other case, 16 weeks.

(*c*) The period may be extended by order made by the Minister with the consent of the Minister for Social and Family Affairs and the Minister for Finance.**]**

(2) Entitlement to a period of leave under *subsection (1)* shall be subject to F31**[**the surviving parent**]**—

(*a*) (i) having, as soon as is reasonably practicable before the commencement of the leave, caused F31**[**his or her**]** employer to be notified in writing of F31**[**his or her**]** intention to take such leave, or

(ii) in a case where F31**[**the qualifying adopter**]** died after the day of placement, causing F31**[**his or her**]** employer to be notified in writing of F31**[**his or her**]** intention to take such leave no later than the day on which F31**[**he or she**]** commences the leave,

and

(*b*) having, as soon as is reasonably practicable, caused F31**[**his or her**]** employer to be notified in writing of the day or expected day of placement, as may be appropriate, and

(*c*) (i) in the case of an adoption other than a foreign adoption, causing F31**[**his or her**]** employer to be supplied with the certificate of placement as soon as is reasonably practicable but not later than 4 weeks after the day of placement or 4 weeks after the commencement of the leave whichever is the later, or

(ii) in the case of a foreign adoption,

F32**[**(I) causing F31**[**his or her**]** employer to be supplied with a copy of an applicable instrument, prepared by or on behalf of the Central Authority of the state of the adoption, that is equivalent to a "declaration of eligibility and suitability" (within the meaning of section 3 (1) of the Adoption Act 2010) as soon as reasonably practicable but not later than 4 weeks after the commencement of the leave, and**]**

(II) causing F31**[**his or her**]** employer to be supplied with particulars in writing of placement as soon as is reasonably practicable,

and

(*d*) causing, if requested, F31**[**his or her**]** employer to be supplied with a copy of the death certificate made in respect of the deceased F31**[**qualifying adopter**]** as soon as is reasonably practicable.

F33**[**(3) The period of adoptive leave referred to in *subsection (1)* shall commence on the latest of the following:

(*a*) within 7 days of the death of F31**[**the qualifying adopter**]**,

(*b*) the F34**[**day of placement,**]**

(*c*) where, on the date of the death of F31**[**the qualifying adopter**]**, F31**[**the surviving parent**]** is on paternity leave, immediately after the end of F34**[**the paternity leave, or**]]**

F35**[**(*d*) where, on the date of the death of F31**[**the qualifying adopter**]**, the adopting father is on parent's leave, immediately after the end of the parent's leave.**]**

(4) A notification under this section may be revoked by a further notification in writing by or on behalf of F31**[**the surviving parent**]** to F31**[**his or her**]** employer.

(5) Where the day of placement is postponed, commencement of the period of adoptive leave shall also be postponed subject to F31**[**the surviving parent**]** causing F31**[**his or her**]** employer to be notified of the expected new day of placement as soon as is reasonably practicable.

Entitlement of adopting father to additional adoptive leave in certain circumstances.

10.—F36**[**(1)(*a*) An employed F37**[**surviving parent**]** who is entitled to, or is on, adoptive leave on the death of F37**[**the qualifying adopter**]** shall, on request, be entitled to further leave (to be known as "additional adoptive leave") from F37**[**his or her**]** employment.

(*b*) The additional adoptive leave shall be for a period of—

(i) in case F37**[**the qualifying adopter**]** dies on or after the expiration of 16 weeks from the day of placement, 8 weeks less the period between the date of that expiration and the date of F37**[**his or her**]** death, or

(ii) in any other case, 8 weeks.

(*c*) The period of additional adoptive leave may be extended by order made by the Minister.**]**

(2) Entitlement to a period of leave under *subsection (1)* shall be subject to F37**[**a surviving parent**]** complying with *section 9 (2)* as adapted by *subsection (3)*.

(3) For the purposes of this section, references in *section 9 (2)* to adoptive leave shall be construed as including references to additional adoptive leave and references therein to *subsection (1)* of that section shall be construed as including references to *subsection (1)* of this section.

(4) Where F37**[**a surviving parent**]** has already complied with the provisions of *section 9 (2) (b), (c)* and *(d)*, it shall not be necessary for F37**[**him or her**]** to comply with those provisions as adapted by *subsection (3)* in order to satisfy the requirements of *subsection (2)*.

F38**[**(5) The period of additional adoptive leave referred to in *subsection (1)* shall commence—

(*a*) within 7 days of the death of F37**[**the qualifying adopter**]**,

(*b*) where, on the date of the death of F37**[**the qualifying adopter**]**, F37**[**the surviving parent**]** is on paternity leave, immediately after the end of the paternity leave, or

(*c*) where F37**[**the surviving parent**]** was on adoptive leave, on the day immediately following the end of such leave.**]**

(6) A notification under this section may be revoked by a further notification in writing by or on behalf of F37**[**the surviving parent**]** to F37**[**his or her**]** employer.

Entitlement of adopting father to additional adoptive leave before day of placement in certain circumstances.

11.—(1) In the case of a foreign adoption, where F39**[**the qualifying adopter**]** dies and F39**[**the surviving parent**]** requires a period of additional adoptive leave before the day of placement, for the purposes of familiarisation with the child who is to be adopted, some or all of the additional adoptive leave under *section 10* may be taken immediately before the day of placement.

(2) Entitlement to a period of leave under *subsection (1)* shall be subject to F39**[**the surviving parent**]**—

(*a*) having, as soon as is reasonably practicable, caused F39**[**his or her**]** employer to be notified in writing of F39**[**his or her**]** intention to take such additional adoptive leave before the day of placement, and

F40**[**(*b*) causing F39**[**his or her**]** employer to be supplied with a copy of an applicable instrument, prepared by or on behalf of the Central Authority of the state of the adoption, that is equivalent to a "declaration of eligibility and suitability" (within the meaning of section 3 (1) of the Adoption Act 2010) as soon as reasonably practicable but not later than 4 weeks after the commencement of the leave, and**]**

(*c*) causing, if requested, F39**[**his or her**]** employer to be supplied with a copy of the death certificate made in respect of the deceased F39**[**qualifying adopter**]** as soon as is reasonably practicable.

(3) The period of additional adoptive leave referred to in *subsection (1)* shall commence as soon as is reasonably practicable after the death of F39**[**the qualifying adopter**]**.

(4) A notification under this section may be revoked by a further notification in writing by or on behalf of F39**[**the surviving parent**]** to F39**[**his or her**]** employer.

(5) Where the expected day of placement is postponed, commencement of the period of additional adoptive leave under this section shall also be postponed subject to F39**[**the surviving parent**]** causing F39**[**his or her**]** employer to be notified of the expected new day of placement as soon as is reasonably practicable.

F41**[**Time off to attend certain pre-adoption classes and meetings.

11A.—(1) Subject to *subsections (2)* and *(3)*, an employee shall be entitled to time off from work, without loss of pay, to attend any pre-adoption classes and meetings which the employee is obliged to attend.

(2) *Subsection (1)* shall not apply—

(*a*) to a member of the Defence Forces who is—

(i) on active service within the meaning of section 5 of the Defence Act 1954 or deemed to be on active service within the meaning of section 4(1) of the Defence (Amendment)(No. 2) Act 1960,

(ii) engaged in operational duties at sea,

(iii) engaged in operations in aid of the civil power,

(iv) engaged in training that is directly associated with any of the activities referred to in *subparagraphs (i)*, *(ii)* and *(iii)* of this paragraph, or

(v) engaged in any other duty outside the State,

(*b*) if the Chief of Staff of the Defence Forces in exceptional circumstances so directs, to a member of the Defence Forces who is required to perform a duty which is, in the opinion of the Chief of Staff of the Defence Forces, of a special or urgent nature for so long as the member is performing the duty,

(*c*) to a member of the Garda Síochána who is on the direction, or with the consent, of the Commissioner of the Garda Síochána serving outside the State and

performing duties of a police character or advising others on, or monitoring them in, the performance of such duties or any related duties for so long as the member is so serving, and

(*d*) if the Commissioner of the Garda Síochána in exceptional circumstances so directs, to a member of the Garda Síochána who is required to perform a duty which is, in the opinion of the Commissioner of the Garda Síochána, of a special or urgent nature for so long as the member is performing the duty.

(3) (*a*) In this subsection "classes" refers to the pre-adoption classes and meetings mentioned in subsection (1).

(*b*) The entitlement of an employee to time off under *subsection (1)* is subject to his or her having—

(i) notified the employer in writing of the dates and times of the classes concerned, or the date and time of each class, as soon as practicable but not later than 2 weeks before the date of the first class, or the class concerned, as the case may be, and

(ii) produced to the employer, on request, an appropriate document indicating the dates and times of the classes, or the date and time of the class, concerned.

(*c*) Where the circumstances are such that, in the case of a particular class, non-compliance by the employee with *paragraph (b)* is not due to any neglect or default by the employee in relation to attendance at the class, the employee is deemed to have complied with the requirements of that paragraph if, not later than one week after the date of the class concerned, he or she provides the employer with evidence of the attendance and an indication of the circumstances which gave rise to the non-compliance.

(4) References in this section to pre-adoption classes and meetings are references to such classes and meetings held within the State.**]**

F42**[**Termination of additional adoptive leave on sickness of adopting parent.

11B.—(1) An adopting parent ("the employee")—

(*a*) who is sick while on adoptive leave or while entitled to, or on, additional adoptive leave, and

(*b*) who wishes to terminate the additional adoptive leave,

may request the employer in writing to terminate the additional adoptive leave or cause such a request to be made.

(2) If the employer agrees to terminate the leave, it shall terminate on a date agreed by the employee and the employer that is—

(*a*) not earlier than the date on which the sickness began, and

(*b*) not later than the date on which the leave would have ended in accordance with the notification of intention to take it given by the employee to the employer under this Part or *section 41*, as the case may be.

(3) The employer shall notify the employee of the decision on the request as soon as is reasonably practicable after its receipt.

(4) On the termination of the additional adoptive leave—

(*a*) the absence from work of the employee owing to sickness after the termination shall be treated in the same way as any other absence from work of the employee owing to sickness, and

(*b*) the employee shall cease to be entitled to any leave not by then taken.**]**

F43**[**Postponement of leave on hospitalisation of child.

11C.—(1) If—

(*a*) an adopted child is in hospital, and

(*b*) the child's adopting parent ("the employee") is entitled to, or is on, adoptive leave or additional adoptive leave,

the employee may request the employer in writing (or cause such a request to be made) to postpone in accordance with this section—

(i) the whole of the adoptive leave and any additional adoptive leave,

(ii) the part of the adoptive leave not by then taken and any additional adoptive leave, or

(iii) the whole of the additional adoptive leave or any part not by then taken,

as appropriate.

(2) If the employer agrees to the request—

(*a*) the employee shall continue to work or, as the case may be, shall return to work on a date agreed by the employee and employer that is not later than the date on which the leave concerned is due to end in accordance with the notification given under *section 7* or (as the case may be) given, or deemed under *subsection (5)* to have been given, under *section 8(3)*,

(*b*) the leave concerned shall be postponed or, as the case may be, postponed with effect from the date agreed under *paragraph (a)*,

(*c*) the employee shall be entitled in accordance with this section to the leave or the part of the leave not taken by reason of the postponement (in this Act referred to as "postponed leave"), and

(*d*) the postponed leave shall be taken as a continuous period beginning not later than 7 days after the child is discharged from hospital or such other date as may be agreed between the employer and the employee.

(3) The employer shall notify the employee concerned in writing of the decision on the request as soon as is reasonably practicable after its receipt.

(4) (*a*) Subject to *subsection (6)*, entitlement to postponed leave shall be subject to the employee having notified the employer in writing (or having caused the employer to be so notified) of the employee's intention to take the leave.

(*b*) The notification shall be given by the employee as soon as is reasonably practicable after the employee becomes aware of the date of the child's discharge from hospital.

(*c*) The notification may be revoked by a further notification in writing given by or on behalf of the employee to the employer.

(5) Notwithstanding that an employee who is on adoptive leave has not caused the employer to be notified in accordance with *section 8(3)* of his or her intention to take additional adoptive leave, the employee shall be deemed, for the purposes of *paragraph (ii)* or *(iii)* of *subsection (1)*, to have done so.

(6) An employer may waive the right to receive a notification in accordance with *subsection (4)*.

(7) The employer may require the employee to supply evidence of the child's hospitalisation and discharge from hospital.**]**

F44**[**Absence from work owing to sickness while leave postponed.

11D.—(1) Where—

(*a*) an employee whose request to postpone leave has been agreed by the employer continues to work or, as the case may be, returns to work in accordance with *section 11C(2)(a)*, and

(*b*) is absent from work owing to sickness while the leave is postponed,

the employee shall be deemed to begin the postponed leave on the first day of the absence unless the employee notifies the employer in writing (or causes the employer to be so notified) as soon as is reasonably practicable that the employee does not wish to begin the postponed leave.

(2) On any such notification—

(*a*) the absence from work of the employee owing to sickness shall be treated in the same way as any other absence from work of the employee owing to sickness, and

(*b*) the employee shall cease to be entitled to the postponed leave.**]**

Placements of less than fourteen weeks duration.

12.—F45**[**(1) Where the placement of a child with an adopting parent terminates before the expiration of the period of leave from the employment to which the adopting parent is entitled under this Part (other than as a result of the death of the child), the adopting parent shall notify the employer in writing (or cause the employer to be so notified) of the date of termination as soon as reasonably practicable but not later than 7 days after that date.**]**

(2) On receipt by F46**[**his or her**]** employer of a notification under *subsection (1)*, the adopting parent shall be required to return to work on such date as is convenient to F46**[**his or her**]** employer but not later than the date on which the notified period of adoptive leave or, as the case may be, the notified period of additional adoptive leave expires.

(3) In the case of a foreign adoption, where an adopting parent takes additional adoptive leave before the day of placement and no placement takes place, F46**[**he or she**]** shall return to work on the day on which the notified period of such leave expires, at the latest, and shall cause F46**[**his or her**]** employer to be notified of the intended date of F46**[**his or her**]** return to work as soon as is reasonably practicable.

(4) In a case to which *subsection (2)* relates an employer shall give the adopting parent one week's notice of the day on which F46**[**he or she**]** is required to return to work.

(5) Where, in the opinion of a rights commissioner or the Tribunal, there are reasonable grounds for an adopting parent's failure to give a notice under this section or for an adopting parent giving it otherwise than within the time limits specified thereunder, the rights commissioner or Tribunal, as the case may be, shall extend the time for service of the said notice.

(6) In the absence of reasonable grounds, failure to give notice under this section or the giving of it otherwise than in the time limits specified thereunder are matters that may be taken into account by a rights commissioner, the Tribunal or Circuit Court in determining the adopting parent's rights under the Act of 1977, this Act or any other relevant enactment so far as the remedies of re-instatement, re-engagement or compensation are concerned.

Certificate of placement to be issued.

13.—(1) An adopting parent shall, if F47**[**he or she**]** so requests, be issued with a certificate ("the certificate of placement") by—

(*a*) the health board which arranges the placing of the child with the adopting parent, or

(*b*) the F48**[**accredited body**]** which arranges the placing of the child with the adopting parent.

(2) The certificate of placement referred to in *subsection (1)* shall be issued, no later than 7 days from the date of receipt of the request, by the health board or F48**[**accredited body**]**, as may be appropriate.

(3) The certificate of placement referred to in *subsection (1)* shall state the following—

(*a*) the date on which it is issued,

(*b*) the day of placement,

(*c*) the sex and date of birth of the child,

(*d*) the name and address of the adopting parent or parents,

and shall be signed by a person authorised to issue such a certificate on behalf of the issuing authority.

(4) The certificate of placement when being issued in accordance with *subsection (1) (a)* may be issued on behalf of the health board by its chief executive officer.

(5) In *subsection (4)* "chief executive officer" includes a person acting as deputy chief executive officer in accordance with section 13 of the Health Act, 1970.

(6) Where the placing of the child with the adopting parent or parents was arranged otherwise than by a health board or F48**[**accredited body**]** and an application for an adoption order has been received by F48**[**the Authority**]** from an adopting parent or parents, F48**[**the Authority**]** shall, on receipt of a request from an adopting parent for a certificate ("the certificate of placement"), issue the adopting parent with a certificate of placement.

(7) The certificate of placement referred to in *subsection (6)* shall be issued, no later than 7 days from the date of receipt of the request, by F48**[**the Authority**]**.

(8) The certificate of placement referred to in *subsection (6)* shall state the following—

(*a*) the date on which it is issued,

(*b*) the date of the application for an adoption order,

(*c*) the day of placement as stated in the application,

(*d*) the sex and date of birth of the child,

(*e*) the name and address of the adopting parent or parents,

and shall be signed by an officer of F48**[**the Authority**]** authorised to issue such a certificate in that behalf.

Evidence as to certificate of placement.

14.—The certificate of placement or a copy thereof certified by the body which issued the certificate of placement to be a true copy shall, unless the contrary is proved, be evidence of the matters referred to therein in any proceedings arising out of or relating to the exercise or attempted exercise by an adopting parent of F49**[**his or her**]** rights under this Act.

PART III

Provisions Relating to Employment Contracts

F50**[**Preservation or suspension of certain rights, etc., while on adoptive leave.

15.—(1) While absent from work on adoptive leave, an employee—

(*a*) shall be deemed to have been in the employment of the employer, and

(*b*) shall, subject to *subsection (6)* and *section 17*, be treated as if the employee had not been so absent,

and the absence shall not affect any right of the employee related to the employment (other than the right to remuneration during the absence), whether conferred by statute, contract or otherwise.

(2) While absent from work on additional adoptive leave an employee—

(*a*) shall be deemed to have been in the employment of the employer, and

(*b*) shall, subject to *subsection (6)* and *section 17*, be treated as if the employee had not been so absent,

and the absence shall not affect any right or obligation related to the employee's employment (other than the employee's right to remuneration or superannuation benefits or any obligation to pay contributions in or in respect of the employment during the absence), whether conferred or imposed by statute, contract or otherwise.

(3) While absent from work attending pre-adoption classes or meetings in accordance with *section 11A*, an employee—

(*a*) shall be deemed to be in the employment of the employer, and

(*b*) shall, subject to *subsection (6)* and *section 17*, be treated as if the employee had not been so absent,

and the absence shall not affect any right related to the employee's employment, whether conferred by statute, contract or otherwise.

(4) Nothing in this section shall affect the right of an employee to be offered suitable alternative employment under *section 19*.

(5) A period of absence from work in accordance with this Act shall not be treated as part of any other leave (including sick leave or annual leave) to which an employee is entitled.

(6) Where, on starting employment, an employee is on probation, is undergoing training in relation to it or is an apprentice, the probation, training or apprenticeship shall stand suspended during any absence from work in accordance with this Act and shall be completed by the employee on returning to work after the absence.

(7) An employee shall be deemed not to be an employed contributor for the purposes of the Social Welfare Acts for any contribution week (within the meaning of those Acts) while absent from work on adoptive leave or additional adoptive leave if the employee does not receive any reckonable earnings (within that meaning) in respect of that week.

(8) The Minister may by regulations prescribe a period or periods of training in relation to which *subsection (6)* shall not apply.**]**

F51**[**Voidance of certain purported terminations of employment, etc.

16.—Each of the following shall be void:

(*a*) any purported termination of or suspension from employment of an adopting parent while absent from work—

(i) on adoptive leave or additional adoptive leave, or

(ii) attending pre-adoption classes or meetings in accordance with section 11A;

(*b*) any notice of termination of the employment of an adopting parent given during the parent's absence from work—

(i) on adoptive leave or additional adoptive leave, or

(ii) while attending pre-adoption classes or meetings in accordance with that section,

and expiring after the absence.**]**

F52**[**Extension of certain notices of termination of employment and certain suspensions.

17.—(1) This section applies to—

(*a*) a notice of termination of employment, or

(*b*) a suspension from employment,

which is given to or imposed on an adopting parent before the adopting parent begins a period of leave under this Act and which is due to expire during the adopting parent's absence from work on that leave.

(2) Any notice of termination or any suspension to which this section applies shall be extended by the period of the absence concerned.

(3) References in *subsection (1)* to a period of leave under this Act include references to a period of time off from work while attending pre-adoption classes or meetings in accordance with *section 11A*.**]**

F53**[**General right to return to work after adoptive leave or additional adoptive leave.

18.—(1) An adopting parent ("the employee") who is absent from work while on adoptive leave or additional adoptive leave shall be entitled to return to work—

(*a*) either—

(i) with the employer with whom the employee was working immediately before the absence, or

(ii) if during the absence there was a change of ownership of the undertaking in which the employee was employed immediately before the absence, with the owner (in this Act referred to as "the successor") of the undertaking when the absence ended,

(*b*) in the job which the employee held immediately before the absence began, and

(*c*) under the contract of employment under which the employee was employed immediately before the absence began, or (as the case may be) under a contract of employment with the successor, which is identical to the contract under which the employee was employed immediately before the absence and (in either case) under terms or conditions—

(i) that are not less favourable than those that would have been applicable, and

(ii) that incorporate any improvements in the terms and conditions of employment to which the employee would have been entitled,

if the employee had not been so absent from work.

(2) For the purposes of subsection (1)(*b*), where the job held by the employee immediately before the absence was not the employee's normal or usual job, the employee shall be entitled to return to work, either in the normal or usual job or in the job so held, as soon as is practicable.

(3) In this section, "job" means the nature of the work which the employee is employed to do in accordance with the employee's contract of employment and the capacity and place in which the employee is so employed.**]**

Right to suitable alternative employment in certain circumstances on return to work.

19.—(1) Where an adopting parent is entitled to return to work under *section 18* but it is not reasonably practicable for F54**[**his or her**]** employer or the successor to permit her to return to work in accordance with that section, she shall be entitled to be offered by F54**[**his or her**]** employer, the successor or an associated employer suitable alternative employment in accordance with a new contract of employment.

(2) The following provisions shall apply to a new contract of employment under this section—

(*a*) the work required to be done under it shall be of a kind which is suitable in relation to the employee concerned and appropriate for F54**[**him or her**]** to do, and

F55**[**(*b*) the terms or conditions of the contract—

(i) relating to the place where the work under it is required to be done, the capacity in which the employee concerned is to be employed and any other terms or conditions of employment are not less favourable to the employee than those of the employee's contract of employment immediately before the absence from work on adoptive leave or additional adoptive leave, and

(ii) incorporate any improvement in the terms or conditions of employment to which the employee would have been entitled if the employee had not been so absent from work during that period.**]**

(3) For the purposes of this section two employers shall be taken to be associated if one is a body corporate of which the other (whether directly or indirectly) has control or if both are bodies corporate of which a third person (whether directly or indirectly) has control and references hereafter in this Act to associated employer shall be construed accordingly.

Notification of intention to return to work.

20.—F56**[**(1) An employee who is entitled to, or is on, adoptive leave or additional adoptive leave shall cause the employer (or, if aware of a change of ownership of the undertaking concerned, the successor) to be notified in writing of the employee's intention to return to work and of the date on which the employee expects to do so—

(*a*) where the leave is for a period of 4 weeks or less, at the same time as the employee notifies the employer of intention to take the leave,

(*b*) where the leave is for a period of more than 4 weeks—

(i) subject to *subparagraph (ii)*, in case the leave is postponed leave, either—

(I) at the same time as the employee notifies the employer under *section 11C(4)* of intention to take the leave, or

(II) at least 4 weeks before the date of the expected return to work,

whichever is the later,

(ii) in case the employee is deemed under *section 11D(1)* to be on postponed leave, as soon as is reasonably practicable after the beginning of the absence from work of the employee owing to sickness but not later than the date on which the employee expects to return to work,

(iii) in any other case, not later than 4 weeks before the date on which the employee expects to return to work.**]**

(2) Where, in the opinion of a rights commissioner or the Tribunal, there are reasonable grounds for an adopting parent's failure to give the notice under *subsection (1)* or for an adopting parent giving it otherwise than in the time limits specified thereunder, the rights commissioner or Tribunal, as the case may be, shall extend the time for service of the said notice.

(3) In the absence of reasonable grounds, failure to give notice under *subsection (1)* or the giving of it otherwise than in the time limits specified thereunder are matters that may be taken into account by a rights commissioner, the Tribunal or Circuit Court in determining the adopting parent's rights under the Act of 1977, this Act or any other relevant enactment so far as the remedies of reinstatement, re-engagement or compensation are concerned.

(4) F57**[**...**]**

Postponement of return to work.

21.—Where, because of an interruption or cessation of work at F58**[**his or her**]** place of employment, existing on the date specified in a notification given under *section 12 (3)* or *20* or on the date on which an adopting parent is required to return to work under *section 12 (2)*, as the case may be, it is unreasonable to expect an adopting parent to return to work on such date, F58**[**he or she**]** may return to work instead when work resumes at the place of employment after the interruption or cessation, or as soon as is reasonably practicable after such resumption.

PART IV

Amendment or Application of Other Enactments

Unfair Dismissals Act, 1977

Amendment of section 1 of Act of 1977.

22.—Section 1 of the Act of 1977 is hereby amended by the insertion after "In this Act—" and before "contract of employment" of the following:

"'adopting parent' means an employee who is an employed adopting mother, an adopting father or sole male adopter within the meaning of *section 2 (1)* of the *Adoptive Leave Act, 1995*;".

Amendment of section 2 (2) of Act of 1977.

23.—Section 2 (2) of the Act of 1977 (which specifies dismissals in relation to which that Act does not apply) is hereby amended by the insertion after paragraph (*c*) (inserted by the Maternity Protection Act, 1994) of the following:

F59**[**(*d*) dismissal where—

(i) the employee's employer at the commencement of the employment informs the employee in writing that the employment will terminate on the return to work with that employer of an adopting parent who is absent from work in accordance with the Adoptive Leave Acts 1995 and 2005 during a period of adoptive leave or additional adoptive leave or a period of time off from work while attending certain pre-adoption classes or meetings, and

(ii) the dismissal of the employee duly occurs for the purpose of facilitating the return to work of the adopting parent.**]**

Amendment of section 6 (2) of Act of 1977.

24.—Section 6 (2) of the Act of 1977 (which specifies the matters which cause a dismissal resulting from any of those matters to be an unfair dismissal) is hereby amended by the insertion after paragraph (*g*) (inserted by the Maternity Protection Act, 1994) of the following paragraph:

F60**[**(*h*) the exercise or contemplated exercise by an adoptive parent of the parent's right under the Adoptive Leave Acts 1995 and 2005 to adoptive leave or additional adoptive leave or a period of time off to attend certain pre-adoption classes or meetings.**]**

Amendment of section 6 of Act of 1977.

25.—Section 6 of the Act of 1977 is hereby amended by the substitution of the following subsection for subsection (2A) (inserted by the Maternity Protection Act, 1994):

"(2A) Sections 3 and 4 of this Act do not apply to a case falling within paragraph (*f*), (*g*) or (*h*) of subsection (2) of this section and, for the purposes of those paragraphs, 'employee' and 'adopting parent' include a person who would otherwise be excluded from this Act by paragraph (*a*), (*c*), (*f*) or (*g*) of section 2 (1) of this Act.".

Adopting parent not permitted to return to work.

26.—(1) This section applies to an adopting parent within the meaning of section 1 of the Act of 1977 as amended by *section 22* who, having complied with *section 20*, is entitled to return to work but is not permitted to do so by F61**[**his or her**]** employer, the successor or an associated employer.

(2) For the purposes of the Act of 1977 an adopting parent shall be deemed to have been dismissed on the date specified in the relevant notification under *section 20 (1)*, and the dismissal shall be deemed to be an unfair dismissal unless, having regard to all the circumstances, there were substantial grounds justifying the dismissal.

Redundancy Payments Act, 1967

Amendment of section 2 of Act of 1967.

27.—Section 2 of the Act of 1967 is hereby amended by the insertion after the definition of "the Act of 1952" and before "business" of the following:

'"adopting parent' means an employee who is an employed adopting mother, an adopting father or sole male adopter within the meaning of *section 2 (1)* of the *Adoptive Leave Act, 1995*;".

F62**[**Amendment of Schedule 3 to Redundancy Payments Act 1967.

28.—Schedule 3 to the Redundancy Payments Act 1967 is amended—

(*a*) in paragraph 5 (absences from work which do not breach continuity of employment) (substituted by section 12(*a*) of the Redundancy Payments Act 2003), by substituting the following subparagraph for subparagraph (*b*):

'(*b*) a period during which, in accordance with the Adoptive Leave Acts 1995 and 2005, an adopting parent was absent from work while on adoptive leave or additional adoptive leave or while attending certain pre-adoption classes or meetings,',

and

(*b*) in paragraph 8A (absences allowable as reckonable service) (inserted by section 12(*b*) of the said Act of 2003), by substituting the following subparagraph for subparagraph (*a*):

'(*a*) a period during which, in accordance with the Adoptive Leave Acts 1995 and 2005, an adopting parent was absent from work while on adoptive leave or additional adoptive leave or while attending certain pre-adoption classes or meetings,'.**]**

Adopting parent not permitted to return to work.

29.—(1) This section applies to an adopting parent within the meaning of section 2 of the Act of 1967 as amended by *section 27* who, having complied with *section 20*,

is entitled to return to work but is not permitted to do so by F63**[**his or her**]** employer, the successor or an associated employer.

(2) For the purposes of the Act of 1967, an adopting parent shall be deemed to have been dismissed by reason of redundancy, the date of dismissal being deemed to be the date specified in the relevant notification under *section 20 (1)*.

Minimum Notice and Terms of Employment Act, 1973

Adopting parent not permitted to return to work.

30.—(1) This section applies to an adopting parent who, having complied with *section 20 (1)*, is entitled to return to work but is not permitted to do so by F64**[**his or her**]** employer, the successor or an associated employer and who is an employee to whom the Acts referred to in *subsection (2)* apply.

(2) For the purposes of the Minimum Notice and Terms of Employment Acts, 1973 to 1991, the contract of employment of an adopting parent to whom this section applies shall be deemed to have been terminated on the date specified in the relevant notification under *section 20 (1)*.

PART V

Disputes Relating to Entitlement

Definition.

31.—In this Part "relevant employer" means the employer, successor or associated employer, as may be appropriate.

Disputes regarding entitlement under this Act.

32.—(1) This Part does not apply to an adopting parent who is in employment as a member of the Defence Forces.

F65**[**(2) This Part does not apply to—

(*a*) a dispute in relation to a dismissal, including a dismissal within the meaning of the Act of 1977, or the termination of a contract of employment,

(*b*) a claim under Part IV of the Act of 1967 as extended by *section 29*.**]**

(3)F66**[**...**]**

(4) The Minister may make regulations for the purposes of this Part.

F67**[**Decision under section 41 or section 44 of Workplace Relations Act 2015.

33. (1) A decision of an adjudication officer under section 41 of the Workplace Relations Act 2015 in relation to a dispute between an adopting parent and the relevant employer relating to the adopting parent's entitlements under this Act or any matter in connection with such entitlements may include—

(*a*) such directions to the parties to the complaint as the adjudication officer considers necessary or expedient for the resolution of the matter, and

(*b*) an award of compensation (in favour of the adopting parent to be paid by the employer) of such amount, not exceeding 20 weeks' remuneration in respect of the adopting parent's employment calculated in accordance with regulations under section 32, as the adjudication officer considers just and equitable having regard to all of the circumstances.

(2) A decision of the Labour Court under section 44 of the Workplace Relations Act 2015 on appeal from a decision of an adjudication officer referred to in subsection (1) may include—

(*a*) such directions to the parties to the complaint as the Labour Court considers necessary or expedient for the resolution of the matter, and

(*b*) an award of compensation (in favour of the adopting parent to be paid by the employer) of such amount, not exceeding 20 weeks' remuneration in respect of the adopting parent's employment calculated in accordance with regulations under section 32, as the Labour Court considers just and equitable having regard to all of the circumstances.

(3) In this section "remuneration" includes allowances in the nature of pay and benefits in lieu of or in addition to pay.**]**

Referral of disputes to rights commissioner.

34. F68**[**...**]**

Appeal from decision of rights commissioner.

35.F69**[**...**]**

Appeal to High Court on point of law.

36.F70**[**...**]**

Service of documents.

37.F71**[**...**]**

Provisions relating to winding up and bankruptcy.

38.F72**[**...**]**

Enforcement of decision of rights commissioner and determination of Tribunal.

39.F73**[**...**]**

Extension of Protection of Employees (Employers' Insolvency) Act, 1984.

40.F74**[**...**]**

PART VI

MISCELLANEOUS AND TRANSITIONAL PROVISIONS

Alternative notification procedure.

41.—(1) Where an adopting parent commences employment within a period of 6 weeks before the day of placement F75**[**he or she**]** shall, as soon as is reasonably practicable but not later than the day on which F75**[**he or she**]** commences adoptive leave, cause F75**[**his or her**]** employer to be notified in writing of F75**[**his or her**]** intention to take adoptive leave, and where such notification is given, the provisions of *section 7 (1) (a), 7 (2) (a)* or *9 (2) (a) (i)*, as the case may be, shall not apply in respect of that period of leave.

(2) Where an adopting parent commences employment within a period of 6 weeks before the day of placement and wishes to take a period of additional adoptive leave before the day of placement under *section 8 (5)* or *section 11*, as the case may be, the adopting parent shall, as soon as is reasonably practicable, but no later than the

day on which F75**[**he or she**]** commences such leave, cause F75**[**his or her**]** employer to be notified in writing of F75**[**his or her**]** intention to take additional adoptive leave before the day of placement, and when such notification is given the provisions of *section 8 (6) (a) or 11 (2) (a)*, as the case may be, shall not apply in respect of that period of leave.

(3) Where a child is to be placed with an adopting parent within the period of 6 weeks beginning on the commencement of this Act, the adopting parent shall, as soon as is reasonably practicable but not later than the day of placement, cause F75**[**his or her**]** employer to be notified in writing of F75**[**his or her**]** intention to take adoptive leave, and where such notification is given, the provisions of *section 7 (1) (a), 7 (2) (a) or 9 (2) (a) (i)*, as the case may be, shall not apply in respect of that period of leave.

(4) Where a child is to be placed with an adopting parent within the period of 6 weeks beginning on the commencement of this Act and the adopting parent wishes to take a period of additional adoptive leave before the day of placement under *section 8 (5)* or *section 11*, as the case may be, the adopting parent shall, as soon as is reasonably practicable, but no later than the day on which F75**[**he or she**]** commences such leave, cause F75**[**his or her**]** employer to be notified in writing of F75**[**his or her**]** intention to take additional adoptive leave before the day of placement, and when such notification is given the provisions of *section 8 (6) (a)* or *11 (2) (a)*, as the case may be, shall not apply in respect of that period of leave.

(5) An employer, who receives a notification under this section within 2 weeks of the notified day of commencement of the leave, may require the adopting parent to delay commencement of the leave, in respect of which the notification was given, for up to 2 weeks from the day on which the notification was received.

Right to adoptive leave where child placed before commencement of Act.

42.—(1) Where a child has been placed with an adopting parent at any time within the period of 10 weeks before the commencement of this Act—

(*a*) the adopting parent shall be entitled to adoptive leave for a period of 10 weeks less a period equivalent to the period beginning on the day of placement and ending on the date of commencement of this Act, or

(*b*) the adopting father shall, in circumstances where the adopting mother dies after the commencement of this Act, be entitled to leave for a period of 10 weeks less a period equivalent to the period beginning on the day of placement and ending on the date of the adopting mother's death.

(2) The adopting parent shall commence a period of leave referred to in *subsection (1) (a)* within the period of 7 days beginning on the date of commencement of this Act and shall, as soon as is reasonably practicable but not later than the day on which the leave is commenced, cause her employer to be notified in writing of her intention to take such leave.

(3) The adopting father shall commence a period of leave referred to in *subsection (1) (b)* within the period of 7 days beginning on the date of the death of the adopting mother and shall, as soon as is reasonably practicable but not later than the day on which the leave is commenced, cause his employer to be notified in writing of his intention to take such leave.

(4) (*a*) In the case of an adoption other than a foreign adoption, entitlement to leave under *subsection (1) (a)* shall be subject to an adopting parent causing her employer to be supplied with the certificate of placement as soon as is reasonably practicable but not later than 4 weeks after the commencement of the leave.

(*b*) In the case of a foreign adoption, entitlement to leave under *subsection (1) (a)* shall be subject to an adopting parent—

(i) causing her employer to be supplied with a copy of the declaration made pursuant to section 5 (1) (iii) (II) of the Adoption Act, 1991, before the commencement of the leave, and

(ii) causing her employer to be supplied with particulars in writing of the placement as soon as reasonably practicable.

(5) *Paragraphs (b), (c) and (d)* of *section 9 (2)* shall apply in respect of an adopting father taking leave under *subsection (1) (b)*.

(6) An employer who receives a notification under this section may require the adopting parent to delay commencement of the leave, in respect of which the notification was given, for up to 2 weeks from the notified day of commencement of the leave.

Right to additional adoptive leave where child placed before commencement of Act.

43.—(1) Where an adopting parent takes leave under *section 42* she shall be entitled, if she so requests, to additional adoptive leave for a period of 4 weeks.

(2) The adopting parent shall commence a period of leave referred to in *subsection (1)* immediately upon the expiration of the period of adoptive leave under *section 42* and shall cause her employer to be notified in writing of her intention to take such leave—

(*a*) at the same time as the notification of her intention to take leave under *section 42 (2)* is given, or

(*b*) not later than 4 weeks before the date on which she intends to take the leave,

whichever is the later.

Notification of intention to return to work in respect of leave taken under *sections 42* and *43*.

44.—(1) An adopting parent who has been on adoptive leave under *section 42* or additional adoptive leave under *section 43* shall cause her employer (or, where she is aware of a change of ownership of the undertaking concerned, the successor) to be notified in writing of her intention to return to work and of the date on which she expects to return to work—

(*a*) at the same time that she causes her employer to be notified of her intention to take leave under either of those sections, or

(*b*) not later than 4 weeks before the date on which she expects to return to work,

whichever is the later.

(2) *Subsections (2)* and *(3)* of *section 20* shall apply to an adopting parent taking leave under *sections 42* and *43* and the references in those subsections to *subsection (1)* shall be construed as including a reference to *subsection (1)* of this section.

F76**[**Revocation.

45.—The Adoptive Leave Act 1995 (Extension of Periods of Leave) Order 2001 (S.I. No. 30 of 2001), so far as unrevoked, and the Adoptive Leave Act 1995 (Extension of Periods of Leave) Order 2004 (S.I. No. 667 of 2004) are revoked.**]**

ACTS REFERRED TO

Adoption Act, 1952	1952, No. 25
Adoption Act, 1991	1991, No. 14
Bankruptcy Act, 1988	1988, No. 27
Civil Service Regulation Act, 1956	1956, No. 46
Companies Act, 1963	1963, No. 33
Courts Act, 1981	1981, No. 11
Employment Agency Act, 1971	1971, No. 27
Health Act, 1970	1970, No. 1
Local Government Act, 1941	1941, No. 23
Maternity Protection Act, 1994	1994, No. 34
Minimum Notice and Terms of Employment Act, 1973	1973, No. 4
Protection of Employees (Employers' Insolvency) Act, 1984	1984, No. 21
Redundancy Payments Act, 1967	1967, No. 21
Social Welfare (Consolidation) Act, 1993	1993, No. 27
Unfair Dismissals Act, 1977	1977, No. 10
Worker Protection (Regular Part-Time Employees) Act, 1991	1991, No. 5



Number 2 *of* 1995

ADOPTIVE LEAVE ACT 1995

REVISED

Updated to 1 April 2021

About this Revised Act

This Revised Act presents the text of the Act as it has been amended since enactment, and preserves the format in which it was passed.

Related legislation

Adoptive Leave Acts 1995 and 2005: this Act is one of a group of Acts included in this collective citation to be construed together as one (*Adoptive Leave Act 2005*, s. 22(2)). The Acts in the group are:

- *Adoptive Leave Act 1995* (2/1995)
- *Adoptive Leave Act 2005* (25/2005)

Other Acts dealing with employment leave are the *Maternity Protection Acts 1994 and 2004*, the *Parental Leave Acts 1998 to 2019* and the *Carer's Leave Act 2001*.

Annotations

This Revised Act is not annotated and only shows textual amendments. An annotated version of this revision is also available which shows textual and non-textual amendments and their sources. It also shows editorial notes including statutory instruments made pursuant to the Act and previous affecting provisions.

Material not updated in this revision

Where other legislation is amended by this Act, those amendments may have been superseded by other amendments in other legislation, or the amended legislation may have been repealed or revoked. This information is not represented in this revision but will be reflected in a revision of the amended legislation if one is available. A list of legislative changes to any Act, and to statutory instruments from 1972, may be found linked from the page of the Act or statutory instrument at www.irishstatutebook.ie.